M Roebois
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19 March 1947

FLICK CASE - REPORT #1

DAILY TRIAL REPORT - TRIBUNAL NO. 5 - FLICK CASE

1. 8 February 1947 - - As is generally known, the indictment in the FLICK case was served against the defendants, Flick, Steinbrinck, Kaletsch, Weiss and Terberger on 8 February.

2. 15 March 1947 - - On 15 March a "preliminary arraignment" was held. I call the proceeding a "preliminary arraignment" because the defendants were not called upon to make their pleas. The proceeding was as follows:

a) The presiding judge, Judge Toms of Tribunal II, which conducted the proceeding, announced that the case of the United States v. Flick and others was before the Tribunal. (p. 1)

b) He asked the marshall to ascertain if the defendants were in court. The marshall did so. (p. 1)

c) The presiding judge asked that the Chief of Counsel read the indictment. Mr. Ervin read the indictment. (pp. 1-20)

d) One of the judges asked each of the defendants if he had been served with a translation of the indictment at least thirty days prior to this date, if he had read it, and if he was represented by counsel. All defendants answered all questions in the affirmative. (pp. 20-22)

It was deemed necessary to have only a "preliminary arraignment" at this time, leaving the making of pleas to the beginning of the actual trial, because the Tribunal which will hear the case is not yet in existence, and, as was pointed out by one of the defense counsel, Ordinance 7 requires that no member of a tribunal may be replaced during a trial, other than by the alternate.

3. Law and Procedure in Court

Defense Counsel then asked for a decision on its written petition, which had been filed with the Secretariat on 12 March and a translation of which was furnished the prosecution during the course of the proceeding on 15 March, requesting (a) a bill of particulars, or (b) that the defense be furnished with the documents on which the indictment is based. (p. 22)

The presiding judge stated that the American system of law would be followed here and does not require the prosecution to present in advance all of the proof which it intends to offer, but merely required that "the indictment shall fairly and adequately advise the defendants of the nature of the charge laid against them." (p. 26)